

**“Regarding implementation of reservation for Persons with Disabilities”**

**Government of Maharashtra**

**Persons with Disabilities Welfare Department,**

Government Circular No.: Divyang-2022 / C.R. 79 / Di. Ka. 2

Mantralaya, Mumbai- 400021.

Date: 10 November, 2023.

**Read :-**

1. Rights of Persons with Disabilities Act, 2016
2. Government Resolution of Social Justice and Special Assistance Department, No.: Apang-2013 / C.R. 201, A.Ka.2 - Regarding implementation of Maharashtra State Policy for Persons with Disabilities, 2018, dated 20 February 2019,
3. Government Resolution of Social Justice and Special Assistance Department, No.: Apang-2019 / C.R. 251, Di.Ka.2, Regarding identification of posts for Persons with Disabilities on the establishment of the State Government, dated 02 February 2021,
4. Minutes of the meeting held in the office of the Hon. Chief Secretary on 18 October, 2023,

**Government Circular :-**

In the meeting held on 18 October, 2023 under the chairmanship of the Hon. Chief Secretary, implementation of 4 percent reservation as per Section 34 of the Rights of Persons with Disabilities Act, 2016 was discussed.

2. In the said meeting, the Secretary, Persons with Disabilities Welfare, explained that the "Persons with Disabilities Welfare Department at the Doorstep of Persons with Disabilities Campaign" is ongoing. During the said campaign, many complaints are being received regarding non-implementation of disability reservation. In this context, in the meeting, the Hon. Chief Secretary directed that, "The Persons with Disabilities Welfare Department should issue a circular regarding the implementation of reservation. Also, definitive opinions on whether disability reservation applies to contractual posts as well should be conveyed to all departments."

3. It is mentioned that appropriate Governments shall identify suitable posts for persons with disabilities as per Section 33 of the Rights of Persons with Disabilities Act, 2016 as follows:

1. Identify posts in establishments that can be filled by persons with benchmark disabilities in the respective category and reserve them as per the provisions under Section 34.
2. Establish an expert committee including a representative of persons with benchmark disabilities to identify such posts, and
3. Review the identified posts at fixed periodic intervals, which period shall not exceed three years.

4. "Appropriate Government" mentioned in Section 3 of the Act shall mean as defined under Section 2(b) of the Rights of Persons with Disabilities Act, 2016. "Appropriate Government" means:-

(1) In relation to the Central Government or any establishment receiving whole or substantial financial assistance from that Government, or a Cantonment Board constituted under the Cantonments Act, 2006, means the Central Government.

(2) In relation to the State Government or any establishment receiving whole or substantial financial assistance from that Government, or any local authority other than a Cantonment Board of the State Government, means the State Government.

5. As per Section 34 of the Rights of Persons with Disabilities Act, 2016, the appropriate Government shall appoint persons with benchmark disabilities to at least 4% of the total number of vacancies in each group of posts in every government establishment. Since many posts of the appropriate Government mentioned in paragraph 4 are to be filled on a contractual basis and their salary is to be paid by the concerned Government department, it is necessary for the concerned department to carry out the action mentioned in the above paragraph 3 for contractual posts as well and reserve posts for persons with disabilities accordingly.

6. This Government Circular is available on the website of the Government of Maharashtra [www.maharashtra.gov.in](http://www.maharashtra.gov.in) and its computer code is 202311101454007335. Also, this Government Circular is being issued with a digital signature.

By order and in the name of the Governor of Maharashtra,

( V. P. Ghodke )

Deputy Secretary, Government of Maharashtra

**Copy to:**

1. Hon. Secretary to the Governor, Raj Bhavan, Malabar Hill, Mumbai.
2. Hon. Principal Secretary to the Chief Minister, Mantralaya, Mumbai.
3. Hon. Secretary to the Deputy Chief Minister, Mantralaya, Mumbai.
4. Hon. Leader of Opposition, Legislative Assembly / Legislative Council, Legislature, Mumbai.
5. Hon. All Members of Legislative Assembly / Legislative Council, Legislature Secretariat, Mumbai.
6. Hon. Chief Secretary, Mantralaya, Mumbai.
7. Additional Chief Secretary / Principal Secretary / Secretary, All Mantralaya Departments, Mumbai.
8. Commissioner, Persons with Disabilities Welfare, Commissionerate, Pune.
9. All District Collectors, District Collector Offices.
10. All Commissioners, Municipal Corporations.
11. All Chief Executive Officers, Zilla Parishads.

12. Principal Accountant General (A & E), Maharashtra-1, Mumbai.
13. Principal Accountant General (Audit), Maharashtra-1, Mumbai.
14. Resident Audit Officer, Mumbai.
15. District Treasury Officers (All).
16. Pay and Accounts Officer, Mumbai.
17. Regional Deputy Commissioner, Social Welfare Office (All).
18. Assistant Commissioner, Mumbai City / Suburban Mumbai.
19. District Social Welfare Officer (All), Zilla Parishad.
20. All concerned members of the Committee (through Commissionerate for Persons with Disabilities Welfare).
21. Bharatiya Janata Party, Maharashtra Pradesh, C.D.O. Barrack No. 1, Opposite Yogakshema, Vasantao Naik Chowk, Nariman Point, Mumbai 400 021.
22. Indian National Congress, Maharashtra Pradesh, Congress (I) Committee, Tilak Bhavan, Kakasaheb Gadgil Marg, Dadar, Mumbai 400 025.
23. Nationalist Congress Party, Rashtrapati Bhavan, Free Press Journal Marg, Nariman Point, Mumbai - 21.
24. Shiv Sena, Shiv Sena Bhavan, Gadkari Chowk, Dadar, Mumbai 400 028.
25. Bahujan Samaj Party, Maharashtra Committee, Janshakti Hall, Globe Mill Palace, Worli, Mumbai - 13.
26. Communist Party of India, Maharashtra Committee, Janshakti Hall, Globe Mill Palace, Worli, 13.
27. Communist Party of India (Marxist), Maharashtra Committee, Janshakti Hall, Globe Mill Palace, Worli, Mumbai - 13.
28. Maharashtra Navnirman Sena, Rajgad, Matoshree Tower, Shivaji Park, Dadar, Mumbai - 28.
29. Select File / Divyang Kalyan-2.